

TENTATIVE RULING(S) FOR JULY 17, 2026

Department S37 – Judge Winston Keh

This court follows California Rules of Court, rule 3.1308(b) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. on the court day immediately before the hearing.

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2112806

Lopez vs FCA

TENTATIVE RULING(S):

Before this Court is Plaintiff's motion for prevailing party's attorney's fees pursuant to Song Beverly.

For context, this matter was removed to Federal Court on December 2, 2019. On February 3, 2020, Plaintiff filed the operative first amended complaint ("FAC") eliminating the Magnuson-Moss cause of action, and therefore renumbering the fraudulent inducement-concealment claim as the sixth cause of action. The matter was remanded to Orange County on February 11, 2020. A motion to compel arbitration was filed on March 10, 2020 by FCA and then withdrawn on June 4, 2020. A protective order was entered into on June 8, 2020. Plaintiff moved to compel further responses to discovery on June 16, 2020 and Defendants moved to transfer venue on June 23,

2020. On September 25, 2020, the Court signed the order transferring venue to San Bernardino County. Judge Gilbert Ochoa held a trial setting conference on July 6, 2021, and set a jury trial for May 30, 2023.

After opposition and reply, the Court granted the motion for judgment on the pleadings as to the sixth cause of action on June 16, 2023.

On January 11, 2024, a notice of settlement of the entire case was submitted. The Court set an OSC for dismissal for July 18, 2024. The matter was reassigned from Department S24 to Department S37 on July 18, 2024. On August 5, 2024, then-Judge Corey Lee ordered a joint stipulation to dismiss with prejudice and retain jurisdiction.

On November 3, 2025, Plaintiff filed this present motion for attorney's fees and costs. Plaintiff asserts he is the prevailing party and pursuant to Song Beverly, attorneys fees are mandatory. Plaintiff seeks: (1) attorney's fees of \$33,591; (2) a multiplier of 1.35 (\$11,756.85); (3) \$7,984.56 in costs and expenses; and (4) an additional \$4,000 to review the opposition and draft the reply. Together with the motion, Plaintiff filed a request for judicial notice as to other judicial decision granting fees; declarations by Ange M. Baker, Esq. and Payam Shahian, Esq. together with a compendium of evidence.

FCA US LLC filed an opposition on March 10, 2026, together with evidentiary objections and the declaration of Colin P. Cronin, Esq.

On March 16, 2026, the Plaintiff filed a reply and evidentiary objections.

Request for Judicial Notice. Plaintiff requests judicial notice of 33 cases from other courts (mainly Federal and Los Angeles Superior Court cases) whereby their attorneys' fees were approved. Requests 23 and 24 were from Riverside and San Bernardino, however none of the cases were provided to the Court. While Court decisions are entitled to judicial notice pursuant to Evid. Code, §452, subd. (d), unpublished decisions cannot be cited or relied upon by a Court or a party in any action other than the actions in which the decisions are rendered. (Rule 8.1115, subd. (a), California Rules of Court.) Trial courts do not make binding precedent. (*King v. Order of United Commercial Travelers* (1948) 333 U.S. 153, 160-61; *Santa Ana Hospital Medical Center v. Bleshe* (1997) 56 Cal.App.4th 819, 830.) What another court ruled upon the hours and

fees in another county is not relevant to this proceeding. Additionally, Plaintiff failed to provide the Court with copies of decisions pursuant to Evid. Code, §453. Thus, the Court DENIES the request.

Objections. Attorney Shahian is the founder of the firm and is able to talk about their practices and the attorneys who work at his firm. He can comment on Court's decisions regarding his firm and their attorneys fees in his declaration. Therefore, the Court OVERRULES objections 1-22. Additionally, the Court OVERRULES objections 1-4 to the Barker's declaration and all objections to the declaration of Colin P. Cronin, Esq. The discussions in the declarations are standard for this motion.

Analysis. Where the buyer of a vehicle prevails in an action under the Song-Beverly Act, they "shall be allowed by the court to recover ... a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred" (Civ. Code, § 1794, subd. (d).) Here, the Plaintiff is the prevailing party pursuant to the settlement entered into between the parties which FCA US LLC does not dispute. Plaintiff seeks: (1) attorney's fees of \$33,591; (2) a multiplier of 1.35 (\$11,756.85); (3) \$7,984.56 in costs and expenses; and (4) an additional \$4,000 to review the opposition and draft the reply. In the opposition, Defendants claim that Plaintiff should recover no more than \$15,035.00 in costs or \$16,625.00 applying a maximum blended rate of \$350. The costs should be taxed in their entirety or alternatively should be no more than \$3,028.90. (Opposition at 15:18-24.)

Hourly Rate. Generally, a reasonable hourly rate is prevailing in the community where the case is litigated for similar work. (*PLCM Group v. Dexter* (2000) 22 Cal.4th 1084, 1095 [*"PLCM"*]; *MBNA America Bank, N.A. v. Gorman* (2006) 147 Cal.App.4th Supp. 1, 13.) But when the evidence reveals the plaintiff could not secure a local attorney to represent him, the out-of-town attorney's home market rate is applied. (*Caldera v. Department of Corrections & Rehabilitation* (2020) 48 Cal.App.5th 601, 609; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 397-99.)

The chart showing the attorneys who worked on the case and their hours and fees claimed:

Attorney Name	Bar Admit	Position	Hourly Rate	Year of Work	Hours	Fee
Christopher Campbell	2015	Trial Counsel	495	2023	8.5	4,207.50
Tionna Carvalo	2014	Partner	495	2020	2.3	1,138.50
Tionna Carvalo			570	2023	1.2	684.00
Tionna Carvalo			595	2024	0.7	416.50
Dhara Chanfy	None	Provisionally Licensed	350	2024	0.1	35.00
James Doddy	2004	Attorney	595	2021	1.1	654.50
Mark Gibson	2008	Attorney	435	2019	2.2	957.00
Mark Gibson			450	2020	1.9	855.00
Christine Haw	2013	Senior Atty	500	2023	1.0	500.00
Jared Kaye	2019	Attorney	395	2023	2.1	829.50
Eleazar Kim	2017	Attorney	360	2020	14.2	5,112.50
Elizabeth Larocque	2002	Attorney	595	2024	0.9	535.00
Daniel Law	2016	Attorney	425	2020	8.0	3,400.00
Daniel Law			475	2023	7.6	3,610.00
Jacob Lister	2009	Attorney	495	2023	4.0	1,980.00
Julian Moore	2003	Attorney	525	2019	0.5	262.50
Julian Moore			525	2020	1.4	735.00
Rebecca Neubauer	2014 IL	Attorney	435	2021	6.7	2,914.50

Rebecca Neubauer	2021 CA		495	2023	0.2	99.00
Anh Nguyen	2012	Attorney	435	2020	2.4	1,044.00
Nino Sanaia	2015- GA; 2022 CA	Attorney	425	2023	0.7	297.50
Marcy Sanchez	2006	Attorney	485	2020	1.7	824.50
Payam Shahian	2003	Founder	875	2025	1.2	1,050.00
Yenok Tantanyan		Law Clerk	345	2025	4.2	1,449.00
		Total			74.8	33,591.00

(See Shahian Decl., ¶¶ 11-17, Ex. 1.)

“What a plaintiff may be bound to pay and what an attorney is free to collect under a fee agreement are not necessarily measured by the ‘reasonable attorney’s fee’ that a defendant must pay pursuant to a court order.” (*Reynolds v. Ford Motor Co.*, *supra*, 47 Cal.App.5th 1105, 1116 (internal citations omitted).) Further, when awarding attorney fees, a trial court is limited by the terms of subdivision (d) of section 1794, which “controls what the losing defendant must pay, not what the prevailing plaintiff must pay his lawyer. The attorney fees provision of the Song-Beverly Act “was not intended ‘to replicate exactly the fee an attorney could earn through a private fee arrangement with his client.’” (*Reynolds*, *supra*, 47 Cal.App.5th 1105, 1116, citing to *Pa. v. Del. Valley Citizens’ Council for Clean Air* (1986) 478 U.S. 546, 565.) As such, the only issue regarding rates before the Court is whether they are reasonable.

A review of decisions from the past few years have found that fees in the range presented by Plaintiffs’ counsel to be on the higher side of what other judges have found reasonable in other

similar Song-Beverly fee motions. (See, e.g., *Hamm v. FCA US LLC* (S.D. Cal. Aug. 16, 2019, No. 3:17-cv-0577-AJB-BGS) 2019 U.S. Dist. LEXIS 141480, at *8-9 [finding rates of \$350-\$550/hour to be reasonable]; *Petropoulos v. FCA US LLC* (S.D. Cal. May 29, 2019, No. 17-CV-0398 W (KSC)) 2019 U.S. Dist. LEXIS 89984, at *5-6 [finding rates of \$275-\$550/hour to be reasonable]; *Goglin v. BMW of North America, LLC* (2016) 4 Cal. App. 5th 462, 473-74 [finding a rate of \$575 reasonable where BMW argued the case was not complex and provided evidence that counsel for BMW charged much lower hourly rates]; *Shaw v. Ford Motor Co.*, No. 5:18cv1169 JLS (KK), 2020 U.S. Dist. LEXIS 2320, 2020 WL 57273, at *3 (C.D. Cal. Jan. 3, 2020) [approving rates between \$200 and \$550].)

Different judges have different views on how high an hourly fee should be and Plaintiff cites decisions where their hourly fee has been approved. (See Shahian Decl.) For San Bernardino County, as well as the area of law, the fees sought are too high. While there are attorneys with significant work experience, the current titles and years of admittance are not the same when looking from 2026 as from an attorney with a 2014 bar admittance and 2020 hourly fee. (See e.g., Carvalo.) The hourly fees are reduced as shown below.

Attorney Name	Bar Admit	Position	Hourly Rate	Year of Work	Hours	Fee
Christopher Campbell	2015	Trial Counsel	350	2023	8.5	2,975.00
Tionna Carvalo	2014	Partner	375	2020	2.3	862.50
Tionna Carvalo			450	2023	1.2	540.00
Tionna Carvalo			450	2024	0.7	315.00
Dhara Chanfy	None	Provisionally Licensed	200	2024	0.1	20.00
James Doddy	2004	Attorney	350	2021	1.1	385.00
Mark Gibson	2008	Attorney	350	2019	2.2	770.00

Mark Gibson			350	2020	1.9	665.00
Christine Haw	2013	Senior Atty	425	2023	1.0	425.00
Jared Kaye	2019	Attorney	325	2023	2.1	682.50
Eleazar Kim	2017	Attorney	350	2020	14.2	4,970.00
Elizabeth Larocque	2002	Attorney	350	2024	0.9	315.00
Daniel Law	2016	Attorney	325	2020	8.0	2,600.00
Daniel Law			350	2023	7.6	2,660.00
Jacob Lister	2009	Attorney	350	2023	4.0	1,400.00
Julian Moore	2003	Attorney	350	2019	0.5	210.00
Julian Moore			350	2020	1.4	49.00
Rebecca Neubauer	2014 IL	Attorney	350	2021	6.7	2,345.00
Rebecca Neubauer	2021 CA		325	2023	0.2	65.00
Anh Nguyen	2012	Attorney	350	2020	2.4	840.00
Nino Sanaia	2015- GA; 2022 CA	Attorney	350	2023	0.7	245.00
Marcy Sanchez	2006	Attorney	350	2020	1.7	595.00
Payam Shahian	2003	Founder	500	2025	1.2	600.00
Yenok Tantanyan		Law Clerk	200	2025	4.2	840.00
		Total			74.8	25,374.00

Reasonable Hours. The starting point for every fee award is calculating an attorney's services by the time expended on the case. (*Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 815.)

"In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged." (*Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; see also *Gorman v. Tassajara Dev. Corp.*, (2009) 178 Cal. App. 4th 44, 101 ("The party opposing the fee award can be expected to identify the particular charges it considers objectionable").) "[I]t is appropriate for a trial court to reduce a fee award based on its reasonable determination that a routine, noncomplex case was overstaffed to a degree that significant inefficiencies and inflated fees resulted." (*Morris v. Hyundai Motor America* (2019) 41 Cal. App. 5th 24, 39.) In *Morris*, the appellate court upheld the trial court's determination that the use of 11 attorneys, from two firms, was unreasonable for a non-complex lemon law case. (*Id.* at 41.) The court further held that, where voluminous records are submitted, the trial court may strike all fees incurred by the excess attorneys. (*Ibid.*)

[*Morris v. Hyundai Motor America* \(2019\) 41 Cal.App.5th 24, 40-41 states:](#)

The court could properly have made an across-the board reduction of 30 percent to accomplish the same purpose. (See *Warren, supra*, 30 Cal.App.5th at p. 41 ["when a "voluminous fee application" is made ... the court may ... "make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure""].) The court got to the same result by cutting particular attorneys' billings. We are satisfied that the trial court did not abuse its broad discretion to determine the reasonable value of the professional services performed by Morris's attorneys. (See *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1096 ["[t]he trial court may make its own determination of the value of the services"]; *Melnyk v. Robledo* (1976) 64 Cal.App.3d 618, 625 [134 Cal. Rptr. 602] ["the trial court ... is not bound by the itemization claimed in the attorney's affidavit"].)

...

“In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East, supra, 6 Cal.App.5th at p. 437; see Mountjoy, supra, 245 Cal.App.4th at p. 272 [“[a] reasonable hourly rate is the product of a multiplicity of factors ... [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case”].)

Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240 is also a good discussion of attorney's fees.

Defendants claim that counsel's hours are unsupported, excessive and unreasonable and should be reduced; there was gross overstaffing on this case; requesting \$345 for an unlicensed law clerk; excessive, cumulative and unnecessary time; block billing should be reduced or rejected; there was unreasonable time for this motion. Defense counsel submits various exhibits to show where they seek reductions in hours. (Ex. 1-4.) The challenging part is that Plaintiff's seek 5.4 hours and \$2,999 for this motion and \$4,000 to review the opposition, file the reply and attend the hearing. While there is a template and the discovery requests, responses, meet and confer and the attorneys fee demand are similar to other cases, each had to be modified for this particular case and work does go into performing the task. The Defendants seek to reduce the hours to 47.50. However, a total of 74.8 hours on an action filed in 2019, went to Federal court and back, changed venues, had discovery motions and a motion for judgment on the pleadings filed and argued, and reach a settlement whereby Plaintiff received \$119,492.40 plus attorney's fees, is actually reasonable. The Court finds the hours allowed on the motion sufficient for reviewing the opposition, reply and hearing as well.

Multiplier. “A trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar

calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1139.) Although Plaintiff’s counsel obtained a recovery on behalf of their client, it is not clear the quality of representation “far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at” the rates requested. (*Ketchum v. Moses, supra*, 24 Cal.4th 1122, 1139.) Further, based on a review of recent case law, multipliers do not seem to be awarded in typical in Song-Beverly actions. (See, e.g., *James Holcomb & Rotoco, Inc. v. BMW of N. Am., LLC* (S.D. Cal. Feb. 14, 2020) No. 18cv475 JM (BGS)) 2020 U.S. Dist. LEXIS 26094, at *25 (denying request for a 0.3 multiplier, stating it was counsel’s “own choice to take this case on a contingency basis” and should not be the basis for a multiplier); *Chavez v. Jaguar Land Rover N. Am., LLC* (S.D. Cal. Jan. 23, 2020, No. 18-cv-2811 W (JLB)) 2020 U.S. Dist. LEXIS 12187, at *9 (rejecting 0.3 multiplier based on the posture and lack of complexity of case); *Hamm, supra*, 2019 U.S. Dist. LEXIS 141480 (rejecting 0.5 multiplier because the case did not involve complexity or novel or difficult questions of law or fact); *Petropoulos, supra*, 2019 U.S. Dist. LEXIS 89984 (“Plaintiffs were not litigating important constitutional rights here. Nor were they representing the public interest. . . . They were seeking compensation and statutory penalties for a defective Durango.”).) As stated by a sister-court in Los Angeles County, in denying a similar multiplier request: “Lemon law litigation is not, as a general rule, complex, and Plaintiff has offered no evidence to show this case was an exception. Defendant’s counsel may have engaged in scorched-earth tactics, but that does not make the questions involved novel or difficult. There is also no testimony or other evidence to suggest this litigation required special skill or precluded [counsel] from taking on clients. The contingent nature of the award, by itself, does not justify a multiplied award.” (*Pttyan v. Aston Martin Lagonda of N. Am.*, Case No. 20STCV47129, Sup. Ct. Los Angeles, 2023 Cal. Super. LEXIS 72413, *9-10.) As such, the Court DENIES Plaintiff’s request for a multiplier. Here, the hourly rate is already sufficient and these cases are formulaic.

Costs. As for Plaintiff’s request for costs, a memorandum of costs was not submitted. Plaintiffs just lists various costs in Exhibit 1 to the Shahian declaration. In Exhibit 3 of the Cronin

declaration, FCA brings up issue related to Ford litigation listed in the cost declaration which are appropriate. The Court therefore DENIES the costs without prejudice to filing a proper memorandum of costs.

RULING

For all the reasons stated above, the Court:

1. OVERRULES objections 1-22; OVERRULES objections 1-4 to the Barker's declaration and all objections to the Cronin's declaration;
2. DENIES Plaintiff's Request for Judicial Notice;
3. AWARDS Plaintiff the total amount of \$25,374.00 in attorney's fees which includes any review of opposition and reply;
4. DENIES any request for a multiplier; and
5. DENIES the costs without prejudice to filing a memorandum of costs pursuant to Code Civ. Proc., §1033.5.

TENTATIVE RULING(S) FOR JULY 17, 2026

Department S37 – Judge Winston Keh

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2528298

Gastelum vs Trustees of the California State University

TENTATIVE RULING(S):

Before the Court is Defendant The Trustees of the California State University's ("Defendant") Demurrer and Motion to Strike, as well as a Request for Judicial Notice and the Declaration of Counsel. Plaintiff filed an Opposition to the Demurrer and Motion to Strike. Defendant replied.

Discussion

Request for Judicial Notice. Defendant requests the Court take judicial notice of the following: 1)

Exhibit F – "Thesis/Project/Dissertation Committee Policy and Guidelines" approved on June 1, 2020, by Graduate Council, located at:

[https://www.csusb.edu/sites/default/files/Thesis%20Committee%20Policy_Guidance_9_17_20.p](https://www.csusb.edu/sites/default/files/Thesis%20Committee%20Policy_Guidance_9_17_20.pdf)
[df](#); 2) Exhibit G – "Master of Science in Computer Science" 2024-25 Catalog, located at

<https://catalog.csusb.edu/archive/2024-25/colleges-schools-departments/naturalsciences/>

computer-science-engineering/computer-science-ms/; and 3) Exhibit H – “Academic Calendar Fall Term 2024” 2024-25 Catalog located at <https://catalog.csusb.edu/archive/2024-25/calendar/>.

Defendant requests judicial notice pursuant to Evidence Code section 452, subdivision (h) on the grounds the Exhibits are not reasonably subject to dispute. Defendant argues they are not subject to dispute because they are cited in the FAC and they are relevant to show that the basis of the lawsuit is Defendant’s alleged failure to follow its own policies, rather than any statute or rules.

The Court GRANTS the requests for judicial notice.

Analysis. Defendant generally and specially demurs to the entire complaint and/or each cause of action on the grounds the pleading is uncertain because all causes of action are vague, not properly pleaded, and that the pleading does not state facts sufficient to constitute a cause of action because all causes of action are barred by the Government Claims Act’s notice of claim requirements, sovereign immunity, and lack the necessary statutory basis to impose liability.

The Government Claims Act-Statute of Limitations. “The Tort Claims Act requires any civil complaint for money or damages first be presented to and rejected by the pertinent public entity (Gov. Code, §§ 910, 912.4, 912.8, 945.4).” (*Munoz v. State of California* (1995) 33 Cal.App.4th 1767, 1776.) “Government Code section 911.2 requires the claim relating to a cause of action for death or for injury to person or to personal property be presented not later than six months after the accrual of the cause of action.” (*Ibid.*)

““Generally speaking, a cause of action accrues at ‘the time when the cause of action is complete with all of its elements.’” “““Ordinarily this is when the wrongful act is done and the obligation or the liability arises, but it does not “accrue until the party owning it is entitled to begin and prosecute an action thereon.”” ... In other words, ‘[a] cause of action accrues “upon the occurrence of the last *element essential to the cause of action*.”’”””” (*Choi v. Sagemark Consulting* (2017) 18 Cal.App.5th 308, 323, emphasis in the original, citations omitted.)

Here, Defendant argues that the FAC alleges the negligent acts and omissions began in August 2020. (FAC ¶ 9.) It claims the causes of action accrued at the end of 2020 and a claim is not

alleged to have been submitted until May 2, 2025. (*Ibid.*) Thus, it argues the statute of limitations expired.

This reading of the FAC is too cursory. There are a number of allegations for which accrual was not complete by the end of 2020 and there are allegations such that the damages would have been ongoing, which Defendant does not account for. For example, there are allegations of harm occurring up and until May 2025, when Plaintiff's degree was finally conferred. (FAC ¶ 9.) These "cumulative failures" are the alleged basis of Plaintiff's harm. (¶ 11.)

In challenging a cause of action is time-barred based on the pleading, the running of the statute must appear clearly and affirmatively from the dates alleged; it is not enough that the complaint might be barred. (*Committee for Green Foothills v. Santa Clara County Bd. Of Supervisors* (2010) 48 Cal.4th 32, 42; *Marshall v. Gibson, Dunn & Crutcher* (1995) 37 Cal.App.4th 1397, 1403.) Furthermore, resolving a statute of limitation question is generally a question of fact. (*Brewer v. Remington* (2020) 46 Cal.App.5th 14, 28.) Here, while some claims may have been time-barred, it is not clear from the face of the complaint that all allegations are in fact time-barred. Therefore, this argument is not persuasive.

Section 815 Immunity. As Defendant is a public entity, "its liability, if any, cannot arise out of the common law. 'Except as otherwise provided by statute,' a public entity 'is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person.'" (Gov. Code, § 815, subd. (3).) This statute...abolished all common law or judicially declared forms of liability. The law's clear purpose was 'not to expand the rights of plaintiffs in suits against governmental entities, but to confine potential governmental liability to rigidly delineated circumstances.'" (*Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1127; See also *Ellerbe v. County of Los Angeles* (2010) 187 Cal.App.4th 1206, 1214.) Accordingly, "all governmental tort liability is dependent on the existence of an authorizing statute or 'enactment.'" (*Searcy v. Hemet Unified High Sch. Dist.* (1986) 177 Cal.App.3d 792, 802, citing Gov. Code, §§ 815 subd. (a) and 815.6.)

"[T]o state a cause of action every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (*Ibid.*) "Since the duty of a

governmental agency can only be created by statute or 'enactment,' the statute or 'enactment' claimed to establish the duty must at the very least be identified." (*Ibid.*) "[A] public entity cannot be held liable for common law negligence." (*McCarty v. State of Cal. Dep't of Transp.* (2008) 164 Cal.App.4th 955, 977.)

Here, Defendant argues no statutory basis is identified in the FAC. It appears that Plaintiff alleges violations of Title 5 of the California Code of Regulations, adopted pursuant to Education Code section 89030, is the statutory basis for the claims. (See FAC ¶¶ 9, 17, 21-34.) Plaintiff then attempts to cite the specific statute for each allegation. These include accurate and timely maintenance of academic records (Title 5, §§ 40401-40405), proper faculty supervision, guidance, and evaluation of graduate culminating activities (Title 5, § 40510(a)-(b)), and (3) timely evaluation and recording of student academic work (Title 5, § 40403).

To the extent Plaintiff intends to rely on these code sections, the FAC fails to state a cause of action. The sections cited do not correspond to the FAC's allegations. Sections 40401 through 40405, for example, do not pertain to the timely maintenance of academic records. Section 40510 details requirements for the master's degree and does not provide a statute prescribing required faculty supervision, guidance, or evaluation of graduate culminating activities. Finally, section 40403 sets the minimum residency requirements for CSU students. As such, no statutory basis is identified permitting a claim for negligence against Defendant.

Government Code section 815.2. Government Code section 815.2, subdivision (a) states, "A public entity is liable for injury proximately caused by an act or omission of an employee of the public entity within the scope of his employment if the act or omission would, apart from this section, have given rise to a cause of action against that employee or his personal representative."

Defendant argues that the allegations of vicarious liability also fail. Defendant notes that the FAC attempts to plead harm caused by the delay in conferring Plaintiff's master's degree, an act committed by CSUSB. Instead, for vicarious liability to apply, Plaintiff needs to identify an independent act, or tort, which would then make Defendant liable. Though this is a sound argument, the FAC identifies cumulative acts and not just the delayed conference of the master's

degree, which Defendant does not address. Nevertheless, as Plaintiff has failed to identify any specific and applicable statutory authority to support his cause of action for negligence, the Court SUSTAINS the demurrer as to the first cause of action for failing to state facts sufficient to constitute a cause of action.

Breach of Mandatory Duty. “Under the act, a public entity is not liable “[e]xcept as otherwise provided by statute.” One such statute is Government Code section 815.6, which provides, “Where a public entity is under a mandatory duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.” Thus, the government may be liable when (1) a mandatory duty is imposed by enactment, (2) the duty was designed to protect against the kind of injury allegedly suffered, and (3) breach of the duty proximately caused injury.” (*State Dept. of State Hospitals v. Superior Court* (2015) 61 Cal.4th 339, 348, citations omitted.)

Defendant argues Plaintiff has failed to identify a mandatory duty.

Under Government Code section 810.6, ““Enactment” means a constitutional provision, statute, charter provision, ordinance or regulation.” Government Code section 811.6 provides that:

““Regulation” means a rule, regulation, order or standard, having the force of law, adopted by an employee or agency of the United States pursuant to the federal Administrative Procedure Act (Chapter 5 (commencing with Section 500) of Title 5 of the United States Code) or as a regulation by an agency of the state pursuant to the Administrative Procedure Act (Chapter 3.5 (commencing with Section 11340) of Part 1 of Division 3 of Title 2).”

“In 1987, the Legislature added section 669.1 to the Evidence Code. It states: “A rule, policy, manual, or guideline of state or local government setting forth standards of conduct or guidelines for its employees in the conduct of their public employment shall not be considered a statute, ordinance, or regulation of that public entity within the meaning of Section 669, unless the rule, manual, policy, or guideline has been formally adopted as a statute, as an ordinance of a local governmental entity in this state empowered to adopt ordinances, or as a regulation by an

agency of the state pursuant to the Administrative Procedure Act (Chapter 3.5 (commencing with Section 11340) of Division 3 of Title 2 of the Government Code), or by an agency of the United States government pursuant to the federal Administrative Procedure Act (Chapter 5 (commencing with Section 5001) of Title 5 of the United States Code).” (*Strong v. State of California* (2011) 201 Cal.App.4th 1439, 1451–1452, disapproved on other grounds by *Leon v. County of Riverside* (2023) 14 Cal.5th 910.)

Defendant argues that overall the FAC’s allegations pertain to CSUSB’s policies and cannot form the basis for a Government Code section 815.6 mandatory duty breach claim because they do not meet the definition of “enactment” under Government Code section 810.6. Indeed, the FAC acknowledges that it relies on policies implemented by CSUSB. (See e.g., FAC at ¶¶ 22, 25, 28, and 31; see also RJN, Exh. F.)

The FAC attempts to identify mandatory duties and lists 1) advisory replacement (Title 5 CCR § 40510(a)), 2) grade submission deadline (§§ 40401-40405), 3) advancement to candidacy requirements (§ 40510), and 4) advisory guidance on project submission (§ 40510(b)).

As noted by Defendant, section 40510 sets master’s degree requirements and has nothing to do with advisory replacement; sections 40401 through 40405 have nothing to do with grade submission deadlines, and section 40510, subdivision (b) does not mandate advisory guidance. While advancement to candidacy is addressed in section 40510, that section provides candidate requirements and does not set for a mandatory duty. Further, the FAC is unclear with its allegations as to this “third mandatory duty” and merely alleges “Defendants advanced Plaintiff without enforcing this requirement.” (See Cal. Code Regs. Tit. 5, §§ 40401-40405, 40510.) Here, it appears Plaintiff relies on CSUSB policy rather than mandated duties that would give rise to a cause of action. Therefore, the Court SUSTAINS the demurrer as to the second cause of action for failing to state facts sufficient to constitute a cause of action.

In Opposition, Plaintiff states he identifies the mandatory duties, but he fails to address the fact that the sections he cites do not correspond to the allegations made in the FAC. Next, he cites *Barner v. Leeds* (2000) 24 Cal.4th 676, 685 (*Barner*) which does note a distinction between discretionary and ministerial acts, but it does not, as Plaintiff represents, state that post-

completion administrative tasks required after academic requirements are satisfied (such as entering the final grade, updating the record, and processing degree conferral) are ministerial and not discretionary acts. Then, confusingly, Plaintiff argues that *Barner* does not control this case.

In addition, Plaintiff argues that Defendant's policies implement a statewide duty and are thus sufficient. But Plaintiff cites no legal authority for this position. A point merely asserted without any authority for the proposition is deemed without foundation and requires no discussion. (See *Allen v. Smith* (2002) 94 Cal.App.4th 1270, 1281.)

In sum, the Court SUSTAINS the demurrer as to both causes of action for failing to state facts sufficient to constitute a cause of action. Though, Defendant requests leave to amend be denied, the Court will exercise its discretion in allowing Plaintiff one more opportunity to cure all the legal deficiencies raised by the Demurrer. Therefore, Plaintiff shall have 20 days leave to amend.

STRIKE.

In light of the Court's ruling on the demurrer, the Court finds the motion to strike MOOT at this time.

RULING

For all the reasons stated above, the Court SUSTAINS the demurrer with 20 days leave to amend and finds the Motion to Strike MOOT.